3559-A

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6th, 1919, known as the "Trading with the Enemy Act" and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, upon such terms and at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, the respective one-tenth undivided interests in the real estate hereinafter described, which are now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned, and delivered to him as the property of CARL BOCK and ELFRIED BOCK, which said persons he did, after investigation determine to be enemies within the purview of said Act as amended:

Situated in the City of Cleveland, County of Cuyahoga, and State of Ohio, and known as being all of sublot No. 17 and the north one-half of sublot No. 18, in Simon Perkins' subdivision of two acre lots Nos. 55, 56, and 57 as shown by the recorded plat in Volume F, Page 265 of Cuyahoga County Records, and together being 84 feet front on the southerly side of St. Clair Street (now St. Clair Avenue) and 82-1/2 feet deep along the easterly line of Seneca Street (now West Third Street) and being the same premises conveyed by Elizabeth W. Budington and William I. Budington to Thomas Bolton by deed recorded in Volume 152, Page 352 of Cuyahoga County Records.

My reasons for the foregoing determination, order, rule, and regulation, are:—

(a) The other four-fifths undivided interests are owned by American citizens who desire a private sale, and the interests of said enemies being so greatly in the minority, cannot be sold to advantage separately;

(b) An attempted sale of the enemy interests at auction would be a useless formality and would involve unnecessary expenses, delay, and inconvenience, which should be avoided.

WARREN G HARDING